

Shama Praveen vs The State Of Madhya Pradesh on 7 August, 2024

Author: Achal Kumar Paliwal

Bench: Achal Kumar Paliwal

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MCRC

IN THE HIGH COURT OF MADHYA PRADESH
AT JABALPUR
BEFORE
HON'BLE SHRI JUSTICE ACHAL KUMAR PALIWAL
ON THE 7th OF AUGUST, 2024
MISC. CRIMINAL CASE No. 32562 of 2024
SHAMA PRAVEEN AND OTHERS
Versus
THE STATE OF MADHYA PRADESH

Appearance:
Shri Kuldeep Singh - Advocate for applicants.
Shri Santosh Yadav - Govt. Advocate for respondent/State

ORDER

This first application under Section 438 of Cr.P.C. has been filed on behalf of the applicants for grant of anticipatory bail.

2. Applicants apprehending their arrest in connection with Crime No. 0479/2024 of Police Station-City Kotwali District - Satna (MP) for commission of the offences punishable under Section 3(5) of B.N.S., 2023 & Section 3/4 Madhya Pradesh Dharmik Swatantrata Adhiniyam, 2021.

3. As per the prosecution story, Nand Kishore Jaiswal lodged a report at police station Kotwali, Satna alleging that Mohd. Adil and his parents (applicants) are threatening him for conversion to Islam and they are also pressurizing victim to convert to Islam.

4. Learned counsel for the applicants submits that applicants are parents of co-accused Mohd. Adil. There is no evidence against present applicants implicating them in the instant offence. After referring to 2 MCRC-32562-2024 documents filed by applicants, it is urged that from evidence available at this stage, no active role in alleged offence can be attributed to present applicants. It is also urged that statement of victim was not got recorded before SDM or in Court. It is urged that offence is punishable with maximum punishment of 5 years. Only role attributed to present applicants is that they asked uncle of victim to convert to Muslim religion. With respect to above submissions, learned counsel for the applicants has relied upon in MCRC No. 22714/2023 vide order dated 05.06.2023 (Chhotelal Choudhary and Other Vs. The State of M.P.) and in MCRC No. 47911/2023 vide order dated 08.11.2023 (Sheikh Iqbal Vs. The State of M.P.) and MCRC No. 38481 of 2023 vide order dated 04.09.2023 (Prashant Kumar @ Joy Hamilton and Another Vs.

The State of M.P.). On above grounds, it is prayed that the applicants be released on anticipatory bail.

5. Per contra, learned Government Advocate for the State has opposed the bail application.

6. Heard the submissions and perused the case diary.

7. Keeping in view the facts and circumstances of the case and taking into consideration overall evidence on record with respect of role of applicants in alleged offence but without expressing any view on the merits of the case, I deem it proper to allow the application and grant benefit of anticipatory bail to the applicants.

8. It is directed that in the event of his arrest, applicants be released on bail on their furnishing a personal bond of Rs.25,000/- (Rupees Twenty Thousand Only) with two solvent surety each of the like amount to the 3 MCRC-32562-2024 satisfaction of the Arresting Officer. It is also directed that the applicant shall abide by the conditions as enumerated under Section 482 (2) of the Bharatiya Nagarik Suraksha Sanhita, 2023. It is made clear that applicant shall appear before the Investigating Officer as & when they are so directed and cooperate with the investigation and they shall also appear before the Trial Court failing which their bail shall automatically stand cancelled without further reference to the Court.

9. Accordingly, this M.Cr.C. is allowed and disposed off. C.C. as per rules.

(ACHAL KUMAR PALIWAL) JUDGE sm